Employment Law Updates | October 2026

Rev. 10/2026

This packet summarizes federal and state employment law changes tracked by Key HR compliance specialists. It is provided for general information and is not legal advice. Contact your Key HR team with questions about how a change applies to your business.

In this packet

- Oct 21, 2026 | Michigan | Michigan launches youth employment permit portal
- Oct 20, 2026 | New York | New York employers must post voting notice by October 20, 2026
- Oct 20, 2026 | California | California employers must post voting notice by October 24, 2026
- Sep 30, 2026 | Federal | SBA proposes major overhaul of small business size standards
- Sep 30, 2026 | Oregon | Oregon repeals cannabis labor peace agreement law
- Sep 30, 2026 | Federal | DOL ends Section 503 disability utilization goal
- Sep 30, 2026 | Pennsylvania | Pennsylvania annual report filing requirements for businesses
- Sep 30, 2026 | Federal | OFCCP rescinds Executive Order 11246 regulations
- Sep 30, 2026 | Pennsylvania | Pennsylvania creates human trafficking training requirements
- Sep 30, 2026 | Federal | DOL opens 2026 VETS-4212 reporting period for federal contractors

MICHIGAN | Oct 21, 2026 | Hiring and minors

Michigan launches youth employment permit portal

Michigan employers hiring workers under 18 must now register and obtain work permits through the state's online Youth Employment Permit Portal instead of through schools.

Key details

- The Michigan Department of Labor and Economic Opportunity (LEO) launched the Youth Employment Permit Portal (YEPP), which became mandatory on October 2, 2026. Schools no longer issue youth work permits.
- The change comes from Public Act 196 of 2024, which updated Michigan's Youth Employment Standards Act.
- Employers must register with LEO through YEPP before hiring a minor and must notify LEO when a minor's employment ends.
- Permits issued by schools before the portal launched remain valid. A new permit is required when a minor changes employers. Rules on hours, wages and safety for minors have not changed.

What employers should do

- Create a MiLogin for Business account and register in YEPP before your next hire under 18.
- Update onboarding so permits for minors are completed in YEPP before the start date.
- Keep existing school-issued permits on file and add a step to report separations of minors through YEPP.
- Train hiring managers on the new process: the minor starts the application and the employer adds the job details.

Official sources

https://www.michigan.gov/leo/bureaus-agencies/ber/wage-and-hour/youth-employment-standards-act-yesa/yepp
https://www.michigan.gov/leo/news/2026/10/01/new-youth-employment-permit-portal-helps-protect-michigan-young-workers

NEW YORK | Oct 20, 2026 | Posting requirements

New York employers must post voting notice by October 20, 2026

New York employers must post the time-off-to-vote notice at least ten working days before every election, which set an October 20 deadline for the November 3, 2026 general election.

Key details

- New York Election Law Section 3-110 requires employers to post a notice of voting leave rights at least ten working days before every election and keep it up until the polls close.
- For the November 3, 2026 general election, ten working days before election day falls on October 20, 2026.
- Registered voters who do not have enough time to vote outside working hours may take up to two hours of paid time off to vote.
- Employees must give notice at least two and no more than ten working days before the election. The employer may require the time to be taken at the start or end of the shift.

What employers should do

- Confirm the notice is posted at every New York worksite and keep it up through the close of polls on November 3.
- Share the notice electronically with remote employees as a best practice.
- Remind managers of the two-hour paid leave limit and the notice rules.
- Add the ten-working-day posting rule for primaries and other elections to your compliance calendar.

Official sources

https://elections.ny.gov/time-vote-notice

CALIFORNIA | Oct 20, 2026 | Posting requirements

California employers must post voting notice by October 24, 2026

California employers must post the time-off-to-vote notice at least ten days before every statewide election, which sets an October 24 deadline for the November 3, 2026 general election.

Key details

- California Elections Code Section 14001 requires employers to post a notice of voting leave rights at least ten days before every statewide election, where employees can see it at work or as they enter or leave.
- For the November 3, 2026 statewide general election, the posting deadline is October 24, 2026.
- Employees who do not have enough time to vote outside working hours may take the time they need, with up to two hours paid.
- Employees who know in advance that they need time off must notify the employer at least two working days before the election. The Secretary of State provides free notices in ten languages.

What employers should do

- Download the official notice from the Secretary of State and post it at every California location.
- Post the language versions your workforce needs and share a copy with remote employees.
- Brief supervisors on the two-hour paid limit and the start-or-end-of-shift scheduling option.
- Add the ten-day posting rule for every statewide election, including primaries, to your compliance calendar.

Official sources
https://www.sos.ca.gov/elections/time-vote-notices

FEDERAL | Sep 30, 2026 | Small business

SBA proposes major overhaul of small business size standards

The U.S. Small Business Administration has proposed replacing its industry size standards with a simpler set, and extended the public comment period to November 20, 2026.

Key details

- On August 20, 2026, the SBA published a proposed rule on small business size standards (91 FR 53741) along with a revised size standards methodology.
- The proposal would replace 995 industry-specific size standards with 338 standards, shift many industries from receipts-based to employee-based standards and remove existing exceptions.
- The SBA proposes not to lower any size standard and estimates that about 114,000 more firms would qualify as small.
- The comment period was extended to November 20, 2026. Current size standards stay in effect until a final rule is issued.

What employers should do

- Compare your primary NAICS code to the proposed standards to see whether your small business status could change.
- If your industry would move to an employee-based standard, review how your employees are counted.
- Submit comments on Regulations.gov by November 20, 2026 if the change would affect your business.
- Keep using current size standards for certifications and bids until a final rule takes effect.

Official sources
https://www.federalregister.gov/documents/2026/08/20/2026-17042/small-business-size-standards
https://advocacy.sba.gov/2026/09/24/sba-extends-comment-period-for-proposed-rules-on-industry-size-standards-a...

OREGON | Sep 30, 2026 | Labor relations

Oregon repeals cannabis labor peace agreement law

Oregon has repealed Ballot Measure 119, which required certain cannabis licensees to maintain labor peace agreements with a labor organization.

Key details

- House Bill 4162 (2026) repeals Ballot Measure 119, approved by voters in 2024.
- Measure 119 required certain Oregon Liquor and Cannabis Commission (OLCC) licensees to have a labor peace agreement to obtain or renew a license.
- The bill passed the House 46 to 2 and the Senate 28 to 0, and takes effect January 1, 2027.
- Enforcement of Measure 119 had already been blocked by a federal court in 2025, and the OLCC had stopped requiring the agreements.

What employers should do

- Remove labor peace agreement steps from OLCC license application and renewal checklists.

- Update internal policies, templates and training materials that reference Measure 119.
- Continue to follow all other OLCC licensing rules and the National Labor Relations Act.

Official sources
https://olis.oregonlegislature.gov/liz/2026R1/Measures/Overview/HB4162

FEDERAL | Sep 30, 2026 | Federal contractors

DOL ends Section 503 disability utilization goal

A final OFCCP rule removes the 7% disability utilization goal and the self-identification requirement for federal contractors, while keeping core Section 503 obligations.

Key details

- OFCCP published the final rule modifying the Section 503 regulations on August 21, 2026 (91 FR 54482). Most changes took effect September 21, 2026.
- The rule removes the 7% disability utilization goal and analysis, the requirement to invite applicants and employees to self-identify (Form CC-305) and related data collection.
- Nondiscrimination, reasonable accommodation, outreach, recordkeeping and audit requirements remain in place.
- The basic Section 503 coverage threshold increases from $15,000 to $20,000.

What employers should do

- Stop using Form CC-305 self-identification invitations and update applicant tracking workflows.
- Revise Section 503 affirmative action programs to remove the utilization analysis while keeping outreach and accommodation elements.
- Review how existing disability self-identification data is stored and limit access to it.
- Recheck contract values against the new $20,000 coverage threshold.

Official sources
https://www.federalregister.gov/documents/2026/08/21/2026-17115/modifications-to-the-regulations-implementing-...

PENNSYLVANIA | Sep 30, 2026 | Business filings

Pennsylvania annual report filing requirements for businesses

Most Pennsylvania business entities must file an annual report with the Department of State, and penalties for missed reports begin with reports due in 2027.

Key details

- Act 122 of 2022 replaced Pennsylvania's decennial report with an annual report that began in 2025.
- Corporations file between January 1 and June 30, LLCs between January 1 and September 30, and other entities such as LPs and LLPs by December 31.
- The fee is $7 for most business entities and $0 for nonprofits. No financial information is required.
- Beginning with reports due in 2027, entities that miss the deadline face administrative dissolution or termination six months later and can lose rights to their name.

What employers should do

- List every Pennsylvania-registered entity you own and calendar its filing window.
- File directly with the Department of State for $7 and avoid third-party services that charge more.
- Confirm that registered office and officer information is current before filing.
- LLCs that missed the September 30, 2026 deadline should file now, before enforcement begins in 2027.

Official sources
https://www.pa.gov/agencies/dos/programs/business/types-of-filings-and-registrations/annual-reports

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FEDERAL | Sep 30, 2026 | Federal contractors

OFCCP rescinds Executive Order 11246 regulations

A final rule rescinds the regulations that implemented Executive Order 11246, ending race and sex affirmative action plan requirements for federal contractors on October 26, 2026.

Key details

- OFCCP published the final rule rescinding the Executive Order 11246 regulations on August 21, 2026 (91 FR 54444). It takes effect October 26, 2026.
- The rule removes the race and sex affirmative action program, placement goal and related requirements that applied to federal contractors under Executive Order 11246.
- It follows Executive Order 14173, issued January 21, 2025, which revoked Executive Order 11246.
- EEO-1 reporting, Title VII obligations and the separate Section 503 and VEVRAA requirements are not affected.

What employers should do

- Retire Executive Order 11246 race and sex affirmative action plans as of October 26, 2026, while keeping Section 503 and VEVRAA programs.
- Continue filing EEO-1 reports and complying with Title VII and state anti-discrimination laws.
- Update contract clauses, job posting taglines and policies that still cite Executive Order 11246.
- Review any voluntary diversity programs with counsel for alignment with current federal guidance.

Official sources
https://www.federalregister.gov/documents/2026/08/21/2026-17114/rescission-of-executive-order-11246-implementing-regulations

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PENNSYLVANIA | Sep 30, 2026 | Training requirements

Pennsylvania creates human trafficking training requirements

Pennsylvania will require hotels, motels and short-term rental operators to train employees with guest contact to recognize and report human trafficking, starting July 20, 2027.

Key details

- Act 31 of 2026 (House Bill 1286) was signed July 20, 2026 and takes effect July 20, 2027.
- It covers lodging establishments with more than ten rooms, their employees and contract workers with guest contact or room access, short-term rental operators and listing platforms.
- Training must be a program approved by the Pennsylvania Commission on Crime and Delinquency. Current staff must be trained within 90 days of the effective date, new staff within 90 days of hire, and everyone every two years.

- Training records must be kept for the length of employment plus one year. Violations can lead to warnings, escalating fines and, for repeat violations, further penalties.

What employers should do

- Identify every role with guest contact or room access, including contracted housekeeping and maintenance staff.
- Select a PCCD-approved training program and plan to train current staff within 90 days after July 20, 2027.
- Add trafficking awareness training to onboarding and set a two-year renewal reminder.
- Set up a recordkeeping process and update vendor contracts to require training for contract workers.

Official sources

https://www.pa.gov/agencies/pccd/programs-and-services/human-trafficking-in-pa/human-trafficking-awareness-training
https://www.pahouse.com/InTheNews/NewsRelease/?id=144552

FEDERAL | Sep 30, 2026 | Federal contractors

DOL opens 2026 VETS-4212 reporting period for federal contractors

Covered federal contractors must file the annual VETS-4212 report on protected veteran employment. The 2026 filing period ran from August 1 to September 30.

Key details

- The VETS-4212 report is required under 38 U.S.C. 4212 (VEVRAA) for contractors and subcontractors with covered federal contracts.
- The yearly filing cycle runs from August 1 to September 30. The 2026 cycle closed September 30, 2026.
- The Department of Labor lists a $200,000 contract threshold for the reporting requirement.
- The report shows total employees and protected veteran employees by EEO-1 job category, plus total hires and protected veteran hires.

What employers should do

- Confirm your 2026 report was filed and keep the confirmation.
- If you missed the deadline, file as soon as possible through the VETS-4212 online application.
- Check coverage against the threshold listed on the Department of Labor program page.
- Track protected veteran status and hires by EEO-1 category ahead of the August 1, 2027 cycle.

Official sources

https://www.dol.gov/agencies/vets/programs/vets4212
